

# POLITY 22 - SPECIAL PROVISIONS

PART XXI | ARTICLES 371-371J | BOUNDED ARTICLE 370/35A BRIDGE

State -> Article -> amendment -> actor -> mechanism -> limit

Constitutional and current control checked 7 September 2026

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## CORE CONCEPT AND OWNERSHIP

PART XXI -> temporary + transitional + State-specific special provisions  
ONE UNION -> ordinary federal rules + purpose-specific constitutional differences  
ASYMMETRY != identical autonomy: classify each clause by State, protected field and actor  
OWNER -> Articles 371-371J + bounded Article 370/35A current-law bridge  
CROSS-LINK ONLY -> Fifth/Sixth Schedules (Topic 26); special classes (Topic 53)  
ANSWER LINE -> Indian unity accommodates difference through bounded constitutional design.

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## ORIGIN AND TIMELINE

1956 7th Amendment s.22 substitutes Article 371; 1960 Bombay reorganisation adapts it  
1962 13th -> 371A | 1969 22nd -> 371B | 1971 27th -> 371C  
1973 32nd -> 371D/371E and removes Andhra Pradesh from Article 371  
1974 35th -> Sikkim associate-State phase | 1975 36th -> Statehood + 371F  
1986 53rd -> 371G | 1986 55th -> 371H | 1987 56th -> 371I  
2012 98th -> 371J; effective 1 Oct 2013 | 2014 s.97 adapts 371D  
2019 Article 370 orders/reorganisation | 2023 Supreme Court judgment.

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## ARTICLE 371 - REGIONAL EQUITY

PRESIDENTIAL ORDER may assign Governor special responsibility for:  
MAHARASHTRA -> Vidarbha + Marathwada + rest of Maharashtra  
GUJARAT -> Saurashtra + Kutch + rest of Gujarat  
MECHANISM -> separate boards -> annual Assembly report -> equitable development funds  
-> adequate technical/vocational facilities + State-service opportunities  
LIMIT -> constitutional authority does not prove a board is currently constituted.  
TRAP -> Article 371 is a development-equity device, not a customary-law veto.

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## ARTICLE 371A - NAGALAND

ASSEMBLY-RESOLUTION SHIELD covers only:  
 1 religious/social practices | 2 customary law/procedure  
 3 civil/criminal justice involving decisions under customary law  
 4 ownership/transfer of land AND its resources  
 SEPARATE CLAUSES -> earmarked Union grants; conditional Governor law-order responsibility  
 TUENSANG -> 35-member Regional Council and special administration for base ten years  
     from 1 Dec 1963, extendable by notified Governor action  
 LIMIT -> historical transition is not a perpetual general veto over Parliament.

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## COMMITTEE MODELS - 371B AND 371C

371B ASSAM -> President may create Assembly committee:  
 members elected from Sixth-Schedule Part I tribal areas + specified other MLAs  
 and may modify Assembly procedure for its functioning  
 371C MANIPUR -> President may create Hill Areas Committee and modify business/procedure  
 Governor -> special responsibility + annual/on-demand report to President  
 Union -> may direct State on administration of declared Hill Areas  
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## ARTICLE 371D/371E - LOCAL OPPORTUNITY

371D -> President may secure equitable public-employment and education opportunity  
TOOLS -> local cadres + local areas + residence/study-based preference or reservation  
2014 AP Reorganisation Act s.97 -> applies framework separately to AP and Telangana  
TELANGANA -> G.S.R. 820(E), 29 Aug 2018; republished G.O.Ms.124, 30 Aug 2018  
ANDHRA PRADESH -> S.O.5777(E), 15 Dec 2025; republished G.O.Ms.45, 20 Apr 2026  
371E -> Parliament may establish a Central University in Andhra Pradesh  
TRAP -> 371E is enabling power, not the local-reservation mechanism.

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## TRIBUNAL HISTORY UNDER ARTICLE 371D

371D(3)-(4) -> President could constitute tribunal for specified service matters  
371D(5) -> State confirmation/annulment mechanism  
P. SAMBAMURTHY (1987) -> clause (5), including proviso, void:  
executive veto over adjudication violated rule of law/basic structure  
371D(7) text excluded High Court superintendence; later tribunal doctrine restored review  
371D(8) -> President may abolish tribunal and transfer pending cases  
G.S.R. 30(E), 14 Jan 2020 -> AP Administrative Tribunal abolished  
LIMIT -> tribunal history must not be presented as the current opportunity framework.

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## ARTICLE 371F - SIKKIM INTEGRATION

35th Amendment, 1974 -> Article 2A + old Tenth Schedule: associate-State phase  
36th Amendment, 1975 -> full Statehood; omitted associate-State scheme; inserted 371F  
CURRENT CORE -> Assembly at least 30; Parliament may protect population sections  
CONTINUITY -> existing High Court, courts, authorities, property and laws continued  
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 PRESIDENT -> two-year adaptation power for old laws; extension of other State enactments  
 R.C. POUDYAL (1993) -> historically tailored representation largely sustained.

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## 371G, 371H AND 371I

371G MIZORAM -> Assembly resolution needed for Parliamentary laws on:  
 Mizo practices | customary law/procedure | customary justice | land ownership/transfer  
 PRE-COMMENCEMENT CENTRAL ACTS saved; Assembly minimum 40  
 371H ARUNACHAL -> Governor consults ministers, then individual judgment on law/order;  
 President may terminate responsibility; Assembly minimum 30  
 371I GOA -> Assembly minimum 30; no land/custom shield or Governor discretion  
 TRAP -> similar Statehood-era origins did not produce identical constitutional designs.

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## ARTICLE 371J - KALYANA KARNATAKA

Constitutional text names HYDERABAD-KARNATAKA; official current usage: KALYANA KARNATAKA  
 PRESIDENTIAL ORDER may assign Governor responsibility for:  
 development board + annual Assembly report + equitable funds + opportunity  
 371J(2) may reserve a proportion of regional education/training seats  
 and identified State-controlled posts for persons belonging by birth or domicile  
 2013 State notifications operationalise employment/admission/certificate machinery  
 LIMIT -> Constitution fixes no universal percentage; current rules/orders control details.

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**ARTICLE 370/35A - BOUNDED OWNER BRIDGE**

1947 accession -> Article 370 application mechanism -> 1954 Order inserts Article 35A  
 5 Aug 2019 C.O.272 applies Constitution comprehensively and supersedes 1954 framework  
 6 Aug 2019 C.O.273 renders Article 370 inoperative except modified clause (1)  
 31 Oct 2019 -> J&K UT with legislature + Ladakh UT without legislature  
 IN RE ARTICLE 370 (11 Dec 2023) -> temporary character; no separate sovereignty;  
 Article 367 substitution ultra vires to stated extent; result and C.O.273 upheld  
 LIMIT -> J&K State-to-UT validity not finally decided; Ladakh creation upheld.

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**TRAPS AND MAINS ANSWER SPINE**

NEVER FLATTEN -> development | consent shield | committee | local opportunity  
 integration | law-order responsibility | minimum Assembly size  
 NEVER MERGE -> constitutional text | amendment | Presidential order | statute  
 State implementation | judgment | dated current status  
 ANSWER -> define asymmetry -> timeline -> classify provision -> name actor  
 -> decode mechanism -> cite amendment/order/case -> evaluate benefit  
 -> qualify implementation, equality and judicial-review limits  
 CONCLUSION -> calibrated difference can deepen unity when transparent and reviewable.